

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BLUE CEDAR'S MEMORANDUM IN SUPPORT OF SUMMARY JUDGMENT

Filed: October 27, 2025

Blue Cedar Compliance, Inc. moves for summary judgment on Leora Benton's sole claim of Title VII retaliation. The record establishes a genuine cost-reduction program, a documented comparison of overlapping manager functions, and a final selection made to exceed a \$612,000 annualized savings target while maintaining client coverage. Benton engaged in protected activity, and Blue Cedar does not contend otherwise on this motion. The disputed question is whether the evidence would allow a reasonable factfinder to conclude that retaliation, rather than the reduction in force, was the but-for cause of her selection.

Temporal proximity does not carry that burden after Blue Cedar has produced a legitimate reason. The contemporaneous materials show that managers were scored, coverage alternatives were tested, and seven authorized positions—five filled positions and two vacancies—were removed. Benton disagrees with several calibration judgments, but disagreement with business judgment is not proof that the stated reason was false. Blue Cedar therefore requests judgment on the claim and entry of a separate final judgment after the Court resolves this motion.

Procedure and issues presented

Benton filed this action on June 16, 2025. Blue Cedar answered, the parties exchanged initial disclosures, and the Court entered a scheduling order that closed fact discovery on October 10. The parties took the depositions of Benton, Draven Pike, Mira Solis, Tessa Wynn, Omar Ibarra, Naomi Voss, and Blue Cedar through its designated representative. They also produced the native RIF versions, scorecards, assignment records, performance measures, communications, and the headcount ledger. Blue Cedar files this memorandum on October 27, within the dispositive-motion schedule.

The complaint contains one retaliation count. Blue Cedar accepts for present purposes that the January 17 written opposition and February 3 agency charge were protected and that termination was materially adverse. The motion addresses the remaining causal question and the pretext stage of the burden-shifting framework. The record does not present a separate discrimination claim, challenge the lawfulness of reducing payroll, or request review of every assignment decision as an independent violation. Nor does Blue Cedar ask the Court to choose between competing witness accounts at trial. It submits that even crediting Benton's admissible evidence, the record does not support a finding that the real savings and coverage explanation concealed retaliatory selection.

Governing Rule 56 and retaliation standards

Rule 56 directs entry of judgment when the movant shows no genuine dispute of material fact and is entitled to judgment as a matter of law. The Court considers cited record materials, draws reasonable inferences for the nonmovant, and does not weigh credibility. A disagreement is material only if it could affect the result under the governing substantive rule; speculation or a collection of immaterial differences does not create a trial issue.

Title VII prohibits an employer from taking adverse action because an employee opposed an unlawful practice or participated in an agency proceeding. Under the pretext method described in *Foster*, the plaintiff may establish a prima-facie causal showing without proving ultimate causation at the first step. Once the employer supplies a legitimate reason, however, she must identify evidence from which a reasonable factfinder could conclude that the stated reason was not the real reason and that retaliation was a but-for cause.

Blue Cedar does not argue that the existence of a reduction in force automatically defeats a retaliation claim. The question is narrower: whether the timing, score changes, comparator differences, alternatives, and explanation records, considered together, permit the required inference about the actual selection decision.

The savings program was real and independently documented

Finance director Sable Finch supplied a \$612,000 annualized payroll-and-benefit target. The covered population contained twenty-three authorized operations and support positions: twenty-one filled and two vacant. The approved B-7 scenario removed five filled positions and eliminated both vacancies, leaving sixteen filled positions. Its projected savings were \$618,400. The affected jobs included Benton and four nonmanager positions; the vacancies had no occupants. The arithmetic appears consistently in the workbook, headcount ledger, and corporate testimony.

The process was not devised only for Benton. Finance identified the shortfall, operations grouped roles with overlapping functions, and human resources preserved a read-only baseline and dated calibration versions. Completion, continuity, credentials, availability, and role uniqueness supplied the written criteria. The model did not mechanically terminate the lowest score because management also had to retain viable client coverage, but manual changes remained visible in the version log.

Benton agrees that Blue Cedar faced a real savings objective and does not claim the other four terminations or two vacancy eliminations were fictitious. That undisputed economic setting does not decide every inference, but it supplies a legitimate, contemporaneous reason for conducting the selection process when Blue Cedar did.

Pike's awareness does not establish retaliatory use

Blue Cedar does not seek judgment on the theory that Draven Pike was wholly unaware of protected activity. The February routing log shows that Mira Solis sent him the agency packet, the system recorded an open event, and Pike replied before attending the February 12 preservation and staffing-input meeting. Pike also knew that Benton had raised an internal assignment concern. Those facts permit an inference of awareness before his March 21 approval.

Awareness is not the same as retaliatory motive. The workbook opened after finance supplied its target, and the written criteria did not include employee-relations status. Solis reminded the calibration group that protected activity could not influence scoring. No contemporaneous entry directs a deduction because Benton complained, and no participant testified that Pike instructed the group to punish her. Pike approved a combination that exceeded the financial threshold and kept each active function assigned.

The six-week interval between Blue Cedar's February 10 receipt and the March 24 termination is relevant, but timing cannot erase the documented intervening work: baseline compilation, four calibration sessions, a variance audit, coverage modeling, finance review, and final approval. Knowledge and proximity therefore establish context, not the required conclusion about but-for cause.

Benton's calibration reflected forward coverage judgments

Benton's imported manager score was 84. Her final score was 68 after continuity decreased from 22 to 14, availability from 12 to 6, and role uniqueness from 9 to 7. Completion remained 27 and credentials 14. Blue Cedar acknowledges that the reductions were calibration judgments, not corrections to the underlying completion, credential, transition, or travel records.

The continuity adjustment reflected the conclusion that Northline and Oriole could be handed to retained managers. The availability adjustment treated Benton's December short-notice decline as relevant to forward coverage. The uniqueness adjustment reflected a plan to divide remediation review between Keene and Voss. Solis questioned the magnitude and consistency of those choices, and Pike approved them under the stated heading of business continuity.

That record may support criticism of the process, but criticism is not evidence that the criteria were invented after the decision. Each field was part of the written protocol before calibration, each change remained in the version history, and the proposed recipients actually received Benton's work after termination. Rule 56 does not authorize a jury to replace operational judgment merely because another weighting was possible; Benton must connect the judgments to a retaliatory reason.

The retained managers had documented coverage differences

Tessa Wynn, Omar Ibarra, and Calvin Keene shared core audit-manager functions with Benton, but their current assignments were not identical. Wynn owned the Lantern transition scheduled through May and received a continuity exception. Ibarra coordinated western-region work and had offered to accept additional second-quarter travel. Keene maintained the audit-reporting script library. Management treated those needs as supporting retention while planning to distribute Benton's client and review work among the same managers.

Benton emphasizes that her Northline and Oriole transitions extended later than Lantern, that she had more completed travel than Ibarra, and that the script library was accessible. Those are fair comparisons. They show that the calibration group exercised judgment and that other weights could have produced a different ranking. They do not establish that Wynn's active transition, Ibarra's future availability, or Keene's automation responsibility was fictional.

The comparators also had different salaries, portfolios, credentials, and proposed roles in the post-RIF plan. Title VII does not require the employer to prove that its decision was optimal. To show pretext, the comparison must support a reasonable inference that Blue Cedar did not honestly rely on the identified coverage distinctions. The undisputed existence of those distinctions does not support that inference.

Alternative models do not show that B-7 was a sham

The scenario workbook confirms that Benton was not mathematically indispensable to reaching the savings target. The nonmanager position base yielded \$470,400. Substituting Wynn, Ibarra, or Keene for Benton produced position savings below the target, but adding a separately modeled \$14,600 archive-hosting consolidation raised those combinations to \$624,000, \$617,000, and \$613,000. Blue Cedar does not dispute that each total crossed the stated threshold.

Those arithmetic alternatives did not preserve the same allocation of work. C-4 retained Benton, so Northline, Oriole, and her remediation-quality work stayed with her; selecting Wynn required reassignment only of Wynn's active Lantern duties. D-2 likewise retained Benton's work and required reassignment only of Ibarra's planned western travel. E-3 retained Benton's work and required transfer only of Keene's automation and reporting-script responsibilities. Operations rejected those scenarios for continuity, summer travel coverage, and automation support, respectively. B-7 instead eliminated Benton and distributed her work among retained staff.

Pike testified that he rejected the alternatives on coverage grounds, not because finance had forbidden them. That concession prevents Blue Cedar from claiming mathematical necessity, but it also identifies the actual choice presented. Evidence that a different qualifying choice existed does not by itself establish retaliatory choice; Benton must show why the coverage explanation was not honestly held.

Timing and later detail do not displace the contemporaneous reason

The March 24 termination letter identified payroll savings and redistribution of redundant management work. It did not accuse Benton of misconduct or poor performance. The April agency response referred additionally to relative completion and availability, and Pike's July custodian interview used the phrase client confidence. Blue Cedar maintains that those later terms supplied detail about the calibrated coverage decision rather than new and incompatible reasons.

The contemporaneous record supports that relationship. Completion and availability were two of the five written criteria. Client continuity was a third. The March versions recorded Benton's completion score, availability adjustment, transition dates, and redistribution plan before the termination. The March 20 communication discussed salary and consolidation; the March 21 approval adopted B-7 under business continuity. None of the later descriptions converted the termination into discipline, and no record asserts that Benton failed a client engagement.

The Court should consider the sequence, but a concise termination letter need not reproduce every workbook field. Where the earlier files already contain the later-described subjects, expanding the explanation does not reasonably show that the savings-and-coverage reason was fabricated to hide retaliation.

No reasonable factfinder could find but-for retaliation

Benton can show protected activity, Pike's awareness, close timing, favorable performance, manual score changes, different comparator credits, qualifying alternatives, redistributed work, and explanations expressed with increasing detail. Considered together, those facts permit scrutiny of Blue Cedar's decision. They do not supply evidence that protected activity caused the selection or that the documented savings and coverage judgment was not honestly made.

The undisputed record contains a real target, a broader seven-position reduction, preserved baseline and calibration versions, identified operational distinctions, and an approved model that exceeded the target. The challenged adjustments concerned criteria written before the selection, and the planned transfers occurred. No decision participant attributes a deduction or selection instruction to Benton's opposition or agency charge. Drawing reasonable inferences for Benton cannot substitute conjecture about motive for evidence of but-for causation.

Blue Cedar therefore requests summary judgment on the sole retaliation claim. It asks the Court to decide only whether the admissible record presents a triable causal dispute, not to declare that every calibration choice was the best available choice. Because that record does not meet the ultimate Foster standard, judgment should be entered for Blue Cedar.